

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2023-CC-

DONTA LEWAYNE SHINHOLSTER and
ANY UNKNOWN PARTY(s) IN POSSESSION,

Defendants.

**COMPLAINT (CIVIL ACTION) SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION, of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, DONTA LEWAYNE SHINHOLSTER, is a natural person believed to own and reside in a mobile home located at 900 - 9th Avenue East, Lot #3, Palmetto, Manatee County, Florida, 34221.

4. Defendant, ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property located at 900 9th Avenue East, Lot #3, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

6. The residents of the community, including Defendant, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723. A copy of the Prospectus approved by the Florida Department of Business and Professional Regulations is incorporated into this complaint and attached as Exhibit "A".

7. Plaintiff, as landlord, leased to Defendant, DONTA LEWAYNE SHINHOLSTER, Lot #3, of the above stated mobile home park at a monthly rental fee. A copy of the lease executed between the parties on March 31, 2022 is attached to this complaint as Exhibit "B".

8. The lease incorporates the Rules and Regulations of Colonial Mobile Manor, which is incorporated into this complaint and attached as Exhibit "C".

9. For the year, 2023, the monthly rent is the sum of \$721.50.

10. The Defendant failed to pay monthly rent for the month of September 2023, which including unpaid lot rent for previous months and late fees (which are additional rent), is as of the date of the filing of this complaint, in the total amount of \$2,298.00.

11. Defendant, DONTA LEWAYNE SHINHOLSTER, is in default in the rental agreement with Plaintiff, by failure to pay the total sum of \$2,298.00 as of September 7, 2023.

12. On September 7, 2023, Plaintiff served on Defendants, DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat.

§723.061(4) by posting on the premises of 900 9th Avenue East, Lot 3, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendant that if she failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "D".

13. On September 7, 2023, Plaintiff also served on Defendants, DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, to the last known address of the Defendant, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice is attached and marked Plaintiff's Exhibit "E" with proof of certified mailing to DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION at her last registered address of 1725 Ballard Park Drive, Bradenton, FL 34205 according to the records of the Florida Department of Highway Safety and Motor Vehicles.

14. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for eviction against the Defendants.

15. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in Lot #3 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

16. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

17. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

18. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

19. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

20. The total lot rental amounts due as of September 7, 2023, is due, which must be paid into the registry of the Court, is \$2298.00, plus \$721.50 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

21. This is an action seeking less than \$8,000.00 excluding costs, interest and attorney fees.

22. Plaintiff re-alleges the facts contained within paragraphs 1 through 20 as though fully set forth herein.

23. In addition to unpaid rent, late fees, costs and a reasonable attorney fee, the Defendant DONTA LEWAYNE SHINHOLSTER has failed to pay the sum of \$473.65 in utilities fees.

24. Defendant, DONTA LEWAYNE SHINHOLSTER, owes the Plaintiff the sum of rent and utilities as of the date of filing this complaint, plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, DONTA LEWAYNE SHINHOLSTER, for damages, costs, and attorney's fees.

PLAINTIFF'S INVOCATION OF POST-JUDGMENT PROCEDURE TO ENFORCE
LANDLORD'S LIEN FOR JUDICIAL SALE

25. Plaintiff seeks to enforce a landlord's lien pursuant to Sections 713.617, 713.77 and 45.031 of Florida Statutes in the event that the Plaintiff's claims under Counts I and II are granted, Plaintiff

is awarded possession of the premises, and Defendant leaves personal possessions on the premises upon vacating 900 9th Avenue East Lot #3, Palmetto, FL 34221.

26. The Plaintiff re-alleges the facts contained within paragraphs 1 through 24 as though fully set forth herein.

27. Defendant, DONTA LEWAYNE SHINHOLSTER, is the registered owner of a *1970 Mauve Double-wide mobile home, Unknown Make and Model, Vehicle Identification No. FT23524SL1517A, Title No. 0003910435; FT23524SL1517B, Title No. 0003910436* which is located on Lot #3 of the property leased by the Plaintiff to the Defendants.

28. If the Plaintiff is awarded possession of the premises, the Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

29. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031. *Idacon Inc. v. Hawes, 432 So. 2d 759 (Fla 1 DCA 1983)*

30. Upon Plaintiff's taking possession of the mobile home lot, it will have perfected its landlord lien against the personal property of Defendants, namely a *1970 Mauve Double-wide mobile home, Unknown Make and Model, Vehicle Identification No. FT23524SL1517A, Title No. 0003910435; FT23524SL1517B, Title No. 0003910436*, to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

31. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, DONTA LEWAYNE SHINHOLSTER, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, DONTA LEWAYNE SHINHOLSTER and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #3, Palmetto, Florida, 34221, on this 5th day of October, 2023.

William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff